

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GERARDO ENCARNACION

Plaintiff(s),

-against-

NEW YORK CITY, POLICE OFFICER TAJI SPICER and
POLICE OFFICER "JOHN DOE", as fictitious name of a
real individual whose true identity is unknown at the present
time

Defendant(s).
-----X

Index No.:
Date Purchased:

SUMMONS

Plaintiff designates
New York County as the place
of trial.

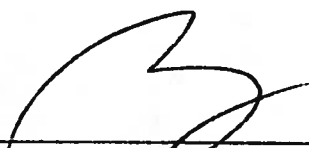
The basis of venue is:
WHERE CLAIM AROSE

Plaintiff resides at:
Shawangunk Correctional
Facility
P.O. Box 700
Walkill, NY 12589
County of Orange

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 8, 2013



JOSHUA N. STEIN
GREENBERG & STEIN
Attorneys for Plaintiff(s)
GERARDO ENCARNACION
360 Lexington Avenue 15th Floor
New York, New York 10017
(212) 681 2535

TO: CITY OF NEW YORK
POLICE OFFICER TAJI SPICER

POLICE OFFICER "JOHN DOE"
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
GERARDO ENCARNACION

VERIFIED COMPLAINT

Plaintiff(s),

-against-

NEW YORK CITY, POLICE OFFICER TAIJI SPICER and
POLICE OFFICER "JOHN DOE", as fictitious name of a
real individual whose true identity is unknown at the present
time

Defendant(s).

-----X

Plaintiff, complaining of the Defendants, respectfully alleges, upon information and belief:

1. At the time of the accident herein mentioned, Plaintiff **GERARDO ENCARNACION** was and still is a resident of the State of New York
2. At all times herein mentioned, Defendant **CITY OF NEW YORK (hereinafter "CITY")** was and still is a municipal corporation.
3. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** was, and still is, a resident of the State of New York and employed by the Defendant **CITY**.
4. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** was, and still is, a resident of the State of New York and employed by the Defendant **CITY**.
5. That on May 11, 2012, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiffs' behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for **CITY**

refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

6. That Defendant **CITY** waived its rights for a statutory hearing pursuant to the General Municipal Law 50-H.

7. At all times herein mentioned, Defendant **CITY** was the owner of a certain police "cruiser" motor vehicle.

8. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** operated the aforementioned police "cruiser" motor vehicle.

9. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** operated the aforementioned police "cruiser" motor vehicle.

10. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** operated the motor vehicle with the permission of Defendant, **CITY**.

11. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** operated the motor vehicle with the permission of Defendant, **CITY**.

12. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** operated the aforementioned motor vehicle with the knowledge of the Defendant **CITY**.

13. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** operated the aforementioned motor vehicle with the knowledge of the Defendant **CITY**.

14. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** operated the aforementioned motor vehicle with the consent of the Defendant **CITY**.

15. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** operated the aforementioned motor vehicle with the consent of the Defendant **CITY**.

16. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** operated the aforementioned motor vehicle within the scope of its employment with the Defendant **CITY**.

17. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** operated the aforementioned motor vehicle within the scope of its employment with the Defendant **CITY**.

18. At all times herein mentioned, Defendant **CITY** managed the aforementioned said motor vehicle.

19. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** managed the aforementioned motor vehicle.

20. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** managed the aforementioned motor vehicle.

21. At all times herein mentioned, Defendant **CITY** maintained the aforementioned motor vehicle.

22. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** maintained the aforementioned motor vehicle

23. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** maintained the aforementioned motor vehicle.

24. At all times herein mentioned, Defendant **CITY** controlled the aforementioned said motor vehicle.

25. At all times herein mentioned, Defendant **POLICE OFFICER TAIJI SPICER** controlled the aforementioned motor vehicle.

26. At all times herein mentioned, Defendant **POLICE OFFICER "JOHN DOE"** controlled the aforementioned motor vehicle.

27. At all times herein mentioned, East 36th Street at intersection with First Avenue, in the City, County and State of New York were public roadways and/or thoroughfares.

28. That at all times herein mentioned, Plaintiff **GERARDO ENCARNACION** was a lawful pedestrian at the aforementioned location.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF GERARDO
ENCARNACION**

29. That Plaintiff repeats and reiterates the allegations set forth in Paragraph(s) 1 through 28 as if set forth fully herein.

30. That on February 11, 2012, Defendant **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER** was operating the aforesaid motor vehicle owned by Defendant **CITY** at the above-mentioned location.

31. That on February 11, 2012, at the aforementioned location, the motor vehicle owned by Defendant **CITY** and operated by Defendant **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER** came into contact with Plaintiff **GERARDO ENCARNACION**.

32. That as a result of the aforesaid contact, Plaintiff **GERARDO ENCARNACION** was seriously injured.

33. That the aforesaid occurrence was caused wholly and solely by reason of the

negligence of the Defendants without any fault or negligence on the part of the Plaintiff contributing thereto.

34. That Defendants were negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of the aforesaid vehicle and the Defendants were otherwise negligent, careless and reckless in the premises.

35. That by reason of the foregoing, Plaintiff **GERARDO ENCARNACION** sustained severe and permanent personal injuries; and Plaintiff **GERARDO ENCARNACION** was otherwise damaged.

36. That Plaintiff **GERARDO ENCARNACION** sustained serious injuries as defined in Subdivision d of §5102 of the Insurance Law-Recodification.

37. That Plaintiff **GERARDO ENCARNACION** sustained serious injury and economic loss greater than basic economic loss as to satisfy the exceptions of §5104 of the Insurance Law.

38. That Plaintiff **GERARDO ENCARNACION** is not seeking to recover any damages for which Plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse Plaintiff. Plaintiff is only seeking to recover those damages not recoverable through no-fault insurance under the facts and circumstances in this action.

39. That this action falls within one or more of the exceptions set forth in CPLR §1602.

40. That by reason of the foregoing, Plaintiff **GERARDO ENCARNACION**, has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF GERARDO
ENCARNACION**

41. Plaintiff repeats and reiterates the allegations set forth in Paragraph(s) 1 through 40 as if fully set forth herein.

42. That on February 11, 2012, the Defendants, **CITY** their agents, servants and/or employees to wit, **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER** under the color of State Law, acting pursuant to the policies and practices set by the executive and/or legislative branches of the government of defendant, **CITY** while engaging in a pattern of behavior condoned and/or permitted by the executive and/or legislative branches of the government of defendant, **CITY** and while in the furtherance of their duties as police officers, intentionally, willfully and recklessly struck Plaintiff with their "Cruiser" motor vehicle. Those officers who did not directly strike the Plaintiff nevertheless acted in concert with their fellow officers by intentionally, willfully and recklessly failing to intervene and restrain their fellow officers.

43. That on or about February 11, 2012, the Defendants **CITY** their agents, servants and/or employees to wit, **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER** conspired to and did violate the civil rights and civil liberties of the Plaintiff **GERARDO ENCARNACION** in violation of Title 42 U.S.C § 1981 & 1983 et seq., the United States Constitution and Bill of Rights, and the New York State Constitution.

44. That the violation of the Plaintiff **GERARDO ENCARNACION's** civil rights resulted from the assault, wrongful by the Defendant(s) **CITY** their agents, servants and/or employees to wit, **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI**

SPICER, their agents, servants and/or employees upon Plaintiff, a member of a minority group, because of his race, in violation of law.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF GERARDO
ENCARNACION**

45. Plaintiff(s) repeat, re-allege and reiterate each and every allegation set forth in Paragraph(s) "1" through "44" as if fully set forth herein.

46. That on February 11, 2012, Defendant(s) **CITY** their agents, servants and/or employees to wit, **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER**, their agents, servants and/or employees in furtherance of their business as Police Officers and acting within the scope of their employment, willfully, wrongfully and without justification assaulted and battered the Plaintiff, **GERARDO ENCARNACION** as more fully set forth above.

47. that on August 29, 2005, the Defendants, **CITY** their agents, servants and/or employees to wit, **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER**, conspired to and did violate the civil rights and civil liberties of the Plaintiff, **GERARDO ENCARNACION** in violation of the statutes, laws, rules and regulations of the State of New York, including but not limited to the New York State Constitution.

48. That the violation of the Plaintiff, **GERARDO ENCARNACION**'s civil rights resulted from the striking of Plaintiff **GERARDO ENCARNACION** with the "Cruiser" motor vehicle by **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER**.

49. That the violation of the Plaintiff, **GERARDO ENCARNACION**'s civil rights that resulted from those officers who did not directly attack the Plaintiff occurred when **POLICE**

OFFICER "JOHN DOE" and/or POLICE OFFICER TAIJI SPICER acted in concert with their fellow officers and intentionally, willfully and recklessly failed to intervene and restrain their fellow officers during the occurrence, aforementioned, in violation of said law(s).

50. That in addition to the personal injuries, both physical and mental as herein before alleged, the plaintiff was humiliated, suffered emotional injuries and was severely traumatized.

51. That as a result of the injuries aforestated, Plaintiff demands compensatory damages.

52. That as a result of the acts of the defendant(s), their agents, servants and/or employees, plaintiff also demands punitive damages and reasonable attorney's fees.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF GERARDO ENCARNACION

53. Plaintiff, **GERARDO ENCARNACION** repeats, re-alleges and reiterates each and every allegation in Paragraphs "1" through "52" as if fully set forth herein.

54. That on February 11, 2012, the Defendants **CITY, POLICE OFFICER "JOHN DOE" and/or POLICE OFFICER TAIJI SPICER**, conspired to and did violate the civil rights and civil liberties of the Plaintiff, **GERARDO ENCARNACION** in violation of the statutes, laws, rules and regulations of the State of New York, including but not limited to the New York State Constitution.

55. That the violation of the Plaintiff, **GERARDO ENCARNACION** civil rights resulted from the assault and battery, by the Defendant(s), **POLICE OFFICER "JOHN DOE" and/or POLICE OFFICER TAIJI SPICER**, their agents, servants and/or employees upon **GERARDO ENCARNACION** in violation of said law(s).

56. That in addition to the personal injuries, both physical and mental as herein before alleged, the plaintiff was humiliated, suffered emotional injuries and was severely traumatized.

57. That as a result of the injuries aforestated, plaintiff demands compensatory damages.

58. That as a result of the acts of the defendant(s), their agents, servants and/or employees, plaintiff also demands punitive damages and reasonable attorney's fees.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF GERARDO ENCARNACION

59. Plaintiff, **GERARDO ENCARNACION** repeats, re-alleges and reiterates each and every allegation in Paragraphs "1" through "58" as if fully set forth herein.

60. That on February 11, 2012, Defendant(s), **CITY, POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER** while acting under the color of State Law and while in the furtherance of their duties as police officers, acting pursuant to the policies and practices set by the executive and/or legislative branches of the government of their employer, Defendant, **CITY**, and while engaging in a pattern of behavior condoned and/or permitted by the executive and/or legislative branches of the government of Defendant, **CITY** did conspire to violate the civil rights and civil liberties of the Plaintiff **GERARDO ENCARNACION** in violation of Title 42 U.S.C §1981 and §1983 et seq., the United States Constitution and Bill of Rights.

61. That the above-mentioned conspiracy occurred while Defendants **POLICE OFFICER "JOHN DOE"** and/or **POLICE OFFICER TAIJI SPICER** were following a policy and/or practice established by the executive and/or legislative branch of the government of

their employer(s), Defendant, **CITY** which directed, encouraged and/or condoned the agents', servants' and/or employees' of the **CITY** to violently assault and batter the citizens of the State of New York including Plaintiff, **GERARDO ENCARNACION**.

62. That in addition to the personal injuries, both physical and mental as herein before alleged, the plaintiff was humiliated, suffered emotional injuries and was severely traumatized.

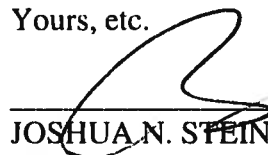
63. That as a result of the injuries aforestated, plaintiff demands compensatory damages.

64. That as a result of the acts of the defendant(s), their agents, servants and/or employees, plaintiff also demands punitive damages and reasonable attorney's fees.

WHEREFORE, Plaintiff(s) demand(s) judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
May 8, 2013

Yours, etc.



JOSHUA N. STEIN
GREENBERG & STEIN
Attorneys for Plaintiff(s)
GERARDO ENCARNACION
360 Lexington Avenue 15th Floor
New York, New York 10017
(212) 681 2535

ATTORNEY'S VERIFICATION

JOSHUA N. STEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GREENBERG & STEIN, P.C., attorneys of record for Plaintiff(s), Gerardo Encarnacion. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: New York, New York
May 9, 2013

A handwritten signature in dark ink, appearing to be 'JN Stein', is written over a horizontal line.

JOSHUA N. STEIN

Index No. 154333/2013
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

GERARDO ENCARNACION

Plaintiff(s),

-against-

NEW YORK CITY, POLICE OFFICER TAIJI SPICER AND POLICE OFFICER "JOHN
DOE", as fictitious name of a real individual whose true identity is unknown at the present time

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

GREENBERG & STEIN, P.C.
Attorneys for "Plaintiff(s)"
360 Lexington Avenue, Suite 1501
New York, New York 10017
(212) 681-2535

TO:



P275974

GREENBERG &STEIN LLP **GREENBERG &STEIN LLP**
SUPREME COURT NEW YORK COUNTY STATE OF NEW YORK

GERARDO ENCARNACION

PLAINTIFF

index No. 154333/13
Date Filed

NEW YORK CITY, ETAL

DEFENDANT

Office No. 5679G Court
Date.

STATE OF NEW YORK, COUNTY OF NEW YORK :SS:

RUDOLPH WRIGHT being duly sworn, deposes and says; I am over 18 years of age, not a party to this action, and reside in the State of New York. That on the 20TH day of MAY, 2013 04:10 PM at

C/O 17TH PCT, NYCPD 167 EAST 51ST STREET
NEW YORK NY 10022

I served the SUMMONS AND VERIFIED COMPLAINT, NOTICE OF MANDATORY ELECTRONIC FILING, upon POLICE OFFICER TAIJI SPICER the DEFENDANT therein named by delivering and leaving a true copy or copies of the aforementioned documents with P.O (JOHN) REARDON, CO-WORKER WHO REFUSED FULL NAME a person of suitable age and discretion.

Deponent describes the person served as aforesaid to the best of deponent's ability at the time and circumstances of the service as follows.

SEX: MALE COLOR: WHITE HAIR: BLONDE
APP.AGE: 43 APP. HT: 6/0 APP. WT: 160
OTHER IDENTIFYING FEATURES

On 05/22/2013 I deposited in the United States mail another true copy of the aforementioned documents properly enclosed and sealed in a post-paid wrapper addressed to the said DEFENDANT at the above address. That being the place of business of the DEFENDANT.

Copy mailed 1st class mail marked personal and confidential not indicating on the outside thereof by return address or otherwise that said notice is from an attorney or concerns an action against the person to be served.

COMMENTS:

Sworn to before me this
22ND day of MAY, 2013

RYAN PARCHMENT
Notary Public, QUEENS COUNTY
01PA6273381
Qualified in QUEENS COUNTY
Commission Expires 12/10/2016

RUDOLPH WRIGHT 1022795
Empire Lawyers Service, LLC
d/b/a Aetna Judicial Service
225 BROADWAY, SUITE 1802
NEW YORK, NY, 10007
Reference No: 3-GSLLP-275974



P275974

GREENBERG &STEIN LLP GREENBERG &STEIN LLP
SUPREME COURT NEW YORK COUNTY STATE OF NEW YORK

GERARDO ENCARNACION

PLAINTIFF

index No. 154333/13
Date Filed

NEW YORK CITY, ETAL

DEFENDANT

Office No. 5679G Court
Date.

STATE OF NEW YORK, COUNTY OF NEW YORK :SS:

RUDOLPH WRIGHT being duly sworn, deposes and says; I am over 18 years of age, not a party to this action, and reside in the State of New York. That on the 20TH day of MAY, 2013 04:10 PM at

C/O 17TH PCT, NYCPD 167 EAST 51ST STREET
NEW YORK NY 10022

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Deponent describes the person served as aforesaid to the best of deponent's ability at the time and circumstances of the service as follows.

SEX: MALE COLOR: WHITE HAIR: BLONDE

APP.AGE: 43 APP. HT: 6/0 APP. WT: 160

OTHER IDENTIFYING FEATURES

On 05/22/2013 I deposited in the United States mail another true copy of the aforementioned documents properly enclosed and sealed in a post-paid wrapper addressed to the said DEFENDANT at the above address. That being the place of business of the DEFENDANT.

Copy mailed 1st class mail marked personal and confidential not indicating on the outside thereof by return address or otherwise that said notice is from an attorney or concerns an action against the person to be served.

COMMENTS:

Sworn to before me this
22ND day of MAY, 2013

BIAN PARCHMENT
Notary Public, QUEENS COUNTY
01PA6273381
Qualified in QUEENS COUNTY
Commission Expires 12/10/2016

RUDOLPH WRIGHT 1022795
Empire Lawyers Service, LLC
d/b/a Aetna Judicial Service
225 BROADWAY, SUITE 1802
NEW YORK, NY, 10007
Reference No: 3-GSLLP-275974



P275973

GREENBERG &STEIN LLP GREENBERG &STEIN LLP
SUPREME COURT NEW YORK COUNTY STATE OF NEW YORK

GERARDO ENCARNACION

PLAINTIFF

index No. 154333/13
Date Filed

NEW YORK CITY, ETAL

- VS -

DEFENDANT

Office No. 5679G Court
Date.

STATE OF NEW YORK, COUNTY OF NEW YORK :SS:

SHAWN D. FORBES being duly sworn, deposes and says; I am over 18 years of age, not a party to this action, and reside in the State of New York. That on the 17TH day of MAY, 2013 03:38 PM at

100 CHURCH ST 4TH FL.
NEW YORK NY 10007

I served a true copy of the SUMMONS AND VERIFIED COMPLAINT, NOTICE OF MANDATORY ELECTRONIC FILING, upon NEW YORK CITY the DEFENDANT therein named by delivering to, and leaving personally with JERRY BRADSHAW, LEGAL CLERK AUTHORIZED TO ACCEPT a true copy of each thereof.

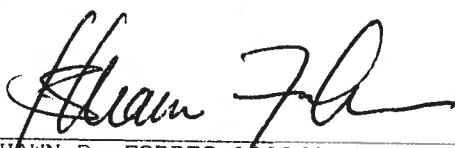
Deponent describes the person served as aforesaid to the best of deponent's ability at the time and circumstances of the service as follows.

SEX: MALE COLOR: BROWN HAIR: BLACK
APP. AGE: 50 APP. HT: 5'6 APP. WT: 170
OTHER IDENTIFYING FEATURES
GLASSES

COMMENTS:

Sworn to before me this
23RD day of MAY, 2013


JEFFREY RUBELL
Notary Public, NASSAU COUNTY
01RU6216027
Qualified in NASSAU COUNTY
Commission Expires 01/11/2014


SHAWN D. FORBES 1002608
Empire Lawyers Service, LLC
d/b/a Aetna Judicial Service
225 BROADWAY, SUITE 1802
NEW YORK, NY, 10007
Reference No: 3-GSILP-275973